

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CHRISTOPHER KULMEIER,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER RAFAEL TATIS, Shield No. 11230,
UNDERCOVER POLICE OFFICER C0324, and POLICE
OFFICERS JOHN DOES #1-8 (names and number of
whom are unknown at present),

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates New York
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 8, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: Police Officer Rafael Tatis, Shield No. 11230, Narcotics Borough Manhattan South,
Undercover Police Officer C0324,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

CHRISTOPHER KULMEIER,

Plaintiff,

-against-

POLICE OFFICER RAFAEL TATIS, Shield No. 11230,
UNDERCOVER POLICE OFFICER C0324, and POLICE
OFFICERS JOHN DOES #1-8 (names and number of
whom are unknown at present),

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff CHRISTOPHER KULMEIER, by his attorneys, Jacobs & Hazan, LLP, as and
for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 8, 2015 at approximately 5:00 p.m. plaintiff Christopher Kulmeier was lawfully present in the vicinity of 490 Eighth Avenue, New York, New York, when defendants subjected him to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers also denied plaintiff the right to due process and a fair trial when they provided the District Attorney's Office with false, incomplete and misleading information and evidence regarding the defendants' purported basis for arresting and charging plaintiff with the crimes defendants' accused plaintiff of committing. The defendants unlawfully handcuffed plaintiff, transported him to the Midtown South Precinct, and detained him in a holding cell for many hours. Eventually plaintiff was transported to Manhattan Central Booking where the unlawful detention continued for many hours. On September 9, 2015 at approximately 5:00 pm, plaintiff was arraigned in New York County Criminal Court and charged with committing felony crimes that he did not commit and that the defendants lacked an objective factual basis to accuse him of committing. Plaintiff was released on his own recognizance at arraignment, but was required to return to court on approximately two additional dates to address the false allegations made by defendants against him. The District Attorney's Office never presented the criminal allegations against plaintiff to a grand jury. Instead, all criminal charges brought against plaintiff were dismissed and sealed in their entirety.

on February 4, 2016 after the District Attorney's Office affirmatively moved to have the charges brought against plaintiff dismissed and sealed. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ a fair trial against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Christopher Kulmeier is a citizen of the United States.
3. Defendant Police Officer Rafael Tatis, Shield No. 11230, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant Police Officer Rafael Tatis, Shield No. 11230, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South Precinct.
5. Defendant Police Officer Rafael Tatis, Shield No. 11230 is being sued in his individual and official capacity.
6. Defendant Undercover Police Officer C0324, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant Undercover Police Officer C0324, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South Precinct.
8. Defendant Undercover Police Officer C0324 is being sued in his individual and official capacity.
9. Defendants New York City Police Officers John Does #1-8 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. Defendants Police Officers John Does #1-8 are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which

acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. By way of background, on September 8, 2015 at approximately 4:30 p.m. plaintiff Christopher Kulmeier lawfully entered the McDonald's located at 490 Eighth Avenue, New York, New York to purchase food to eat when he was approached by an individual who appeared to be homeless but is now believed to be defendant Undercover Police Officer C0324.

16. Undercover Police Officer C0324 asked plaintiff if he wanted to purchase heroin and plaintiff told Undercover Police Officer C0324 that he was not interested in buying heroin.

17. Thereafter, plaintiff sat down at a table inside of the McDonald's and took his medication which was prescribed to him by his doctor to treat epilepsy.

18. While plaintiff was taking his medication he observed Undercover Police Officer approach another individual inside of the McDonalds and engage in what plaintiff suspected was a drug transaction with the other individual, now known to be Richard Sigue.

19. Plaintiff felt uncomfortable remaining inside of the McDonald's because it appeared to him that drugs were being openly sold at the location; therefore on September 8, 2015 at approximately 5:00 pm plaintiff decided to exit the McDonald's.

20. As plaintiff was lawfully exiting the McDonald's in the vicinity of 490 Eighth Avenue, New York, New York, the defendants approached plaintiff, and subjected him to an unlawful stop, question, frisk, and search.

21. Specifically, the defendants threw plaintiff's body against a nearby wall, unlawfully frisked plaintiff, and unlawfully searched inside of plaintiff's pockets and inside of his belongings.

22. At no time relevant herein did defendants have reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law in any way.

23. The defendants did not recover any illegal drugs, weapons or contraband from plaintiff's possession, custody or control pursuant to the unlawful search of plaintiff or otherwise.

24. The defendants removed plaintiff's legally prescribed medication from plaintiff's belongings and advised plaintiff that they were arresting him for possessing the medication.

25. Plaintiff explained to defendants that the medication was legally prescribed to him by his medical doctor and he needed to take the medication to treat epilepsy and to prevent him from having seizures.

26. The defendants did not possess any objective evidence or facts that supported allegations that plaintiff illegally possessed the medication found in his possession by defendants.

27. Although the officers lacked probable cause or any other justification to arrest plaintiff, they unlawfully handcuffed plaintiff and falsely arrested/ imprisoned him.

28. The defendants transported plaintiff to the Midtown South Precinct, and unlawfully detained him in a holding cell for many hours.

29. Defendants unlawfully fingerprinted and photographed plaintiff.

30. Eventually plaintiff was transported to Manhattan Central Booking where the unlawful detention continued for many hours.

31. The defendant police officers denied plaintiff the right to due process and a fair trial when they provided the District Attorney's Office with false, incomplete and misleading information and evidence regarding the defendants' purported basis for arresting and charging plaintiff with the crimes defendants' accused plaintiff of committing

32. On September 9, 2015 at approximately 5:00 pm, based upon the false allegations made against plaintiff by defendants plaintiff was arraigned in New York County Criminal Court and charged with committing felony crimes that he did not commit and that the defendants lacked an objective factual basis to accuse him of committing, including but not limited to Criminal Sale of a Controlled Substance in the Fourth and Fifth Degrees.

33. Plaintiff was released on his own recognizance at arraignment, but was required to return to court on approximately two additional dates to address the false allegations made by defendants against him.

34. The District Attorney's Office never presented the criminal allegations against plaintiff to a grand jury.

35. Instead, all criminal charges brought against plaintiff were dismissed and sealed in their entirety on February 4, 2016 after the District Attorney's Office affirmatively moved to have the charges brought against plaintiff dismissed and sealed.

36. Plaintiff was maliciously prosecuted and denied the right to due process/ right to a fair trial by the defendant police officers.

37. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

38. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime.

39. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

40. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of the right to due process and denial of the right to a fair trial.

41. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse, denial of the right to due process and denial of the right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to due process and a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

46. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

61. Plaintiff repeats and realleges paragraphs 1 through 60 as if fully set forth herein.

62. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

63. Defendants commenced and continued a criminal proceeding against plaintiff.

64. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

65. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

66. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Right to Due Process/ Fair Trial

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 68 with the same force and effect as if fully set forth herein.

70. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the District Attorney's Office.

71. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the District Attorney's Office.

72. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the District Attorney's Office.

73. In withholding/creating false evidence against plaintiff Bernard Miller, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

74. As a result of the foregoing, plaintiff Bernard Miller, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION**Failure to Intervene**

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was humiliated and subject to other physical constraints.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 8, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 14th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 8, 2018

/s/
DAVID M. HAZAN, ESQ.